

		3d 291, 303 (holding that a violation of the technical requirements of former Code Civ. Proc. § 409(d) was a ground justifying expungement); <i>Rey Sanchez Investments v. Sup. Ct.</i> (2016) 244 Cal. App. 4th 259, 263 (holding lis pendens was void and invalid when no proof of service was recorded with lis pendens).) Thus, based on the foregoing reasons, the motion is granted. Defendants' request for attorney fees is denied. Defendants do not state in the Notice whether the sanctions are sought against counsel, Plaintiff or both. "[C]onstitutional principles of due process require a notice of motion to identify the persons against whom monetary sanctions are being sought." (<i>Cromwell v. Cummings</i> (1998) 65 Cal.App.4th Supp. 10, 13 [citing <i>Blumenthal v. Superior Court</i> (1980) 103 Cal.App.3d 317, 320].) The failure to so specify precludes the requested fee order. Defendants shall give notice.
6.	2025-1471111 Kiannasr vs. General Motors LLC	Plaintiff Hassan Kiannasr's motion for attorney fees is granted in part. Plaintiff is awarded \$17,534.00 in attorney fees. Plaintiff moves for \$18,846.50 in attorney fees as the prevailing party under Civil Code section 1794, subdivision (d), following acceptance of Defendant's Code of Civil Procedure section 998 offer. Plaintiff also seeks a 0.3 lodestar enhancement of \$5,653.95. <u>Entitlement to Award</u> Under Civil Code section 1794, subdivision (d), a prevailing buyer may recover attorney fees based on actual time expended and reasonably incurred in prosecuting the action. Plaintiff accepted Defendant's Code of Civil Procedure section 998 offer, under which Defendant agreed to repurchase the subject vehicle for \$98,000 and to pay reasonably incurred attorney fees, costs, and expenses under Civil Code section 1794, subdivision (d), as determined by noticed motion. (Acosta Decl., ¶¶ 33–34.) Defendant does not dispute Plaintiff's entitlement to reasonable attorney fees, but challenges the amount requested. Accordingly, Plaintiff, as the prevailing party, is entitled to recover reasonable attorney fees under Civil Code section 1794, subdivision (d). <u>Standard of Review</u>

An award of attorneys' fees will be affirmed absent a showing the trial court abused its discretion. (*Jones v. Union Bank of California* (2005) 127 Cal.App.4th 542, 549 ["We must affirm an award of attorneys' fees absent a showing that the trial court clearly abused its discretion."]) Moreover, an abuse of discretion is shown only where an "award shocks the conscience or is not supported by the evidence." (*Ibid.*) "The only proper basis of reversal of the amount of an attorney fees award is if the amount awarded is so large or small that it shocks the conscience and suggests that passion and prejudice influenced the determination." (*Akins v. Enterprise Rent-A-Car Co. of San Francisco* (2000) 79 Cal.App.4th 1127, 1134.)

The above standard is an acknowledgment that "[t]he experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.)

Lodestar Amount

"[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) "California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (*Ibid.*) "The reasonable hourly rate is that prevailing in the community for similar work." (*Ibid.*)

"'In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other case.'" (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 41; See also *Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009.)

Hourly Rates

Plaintiff seeks a base lodestar of \$18,846.50 for 39.1 hours as follows:

Name	Hours	Hourly Rate
Anthony Greco	17.2	\$595
Christopher Urner	7.7	\$525

Jorge L. Acosta	3.1	\$450
Vazgen Pogosyan	2.0	\$450
Law Clerks & Paralegals	9.1	\$250

Plaintiff submits evidence concerning counsel's experience and prior awards approving the firm's rates. (Acosta Decl., ¶¶ 6–14, 22–26.) Plaintiff also submits evidence that the requested rates have been awarded in other Song-Beverly matters, including in Orange County. (Acosta Decl., ¶ 26; Urner Decl., ¶ 2.)

Defendant contends that all attorney work should be compensated at Acosta's \$450 hourly rate because the case was routine and higher-billing attorneys performed work that could have been performed by lower-billing attorneys or paralegals. Defendant notes that the case involved no depositions, discovery motions, dispositive motions, or trial.

However, Defendant does not submit evidence establishing that \$450 is the prevailing market rate for all attorneys who worked on this matter. Moreover, the relative simplicity of the case bears more directly on the reasonableness of the hours expended and staffing than on the applicable hourly rates.

Based on the foregoing, as well as the Court's own experience with similar cases, the Court finds the requested hourly rates reasonable.

Time Expended

Thereafter, "Civil Code section 1794 requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable." (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34 [cleaned up internal quotations].) "A prevailing buyer has the burden of showing that the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (*Ibid.* [cleaned up internal quotations].)

"In evaluating whether the attorney fee request is reasonable, the trial court should consider "whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended." (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38.) "Reasonable compensation does not include compensation for 'padding' in the form of inefficient or duplicative efforts...." [Citations.] "A reduced award might be fully justified by a general observation that an attorney

overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections.” ‘ ‘ (Ibid.)

“[V]erified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.)

Acosta states that the firm maintains contemporaneous electronic billing records and that he reviewed the records to remove redundant billing and nonessential clerical items. (Acosta Decl., ¶¶ 18–21.)

Defendant, in opposition, raises multiple objections.

Complaint and Template-Based Work

Defendant challenges 2.2 hours billed by Urner in connection with the Complaint: one hour reviewing the case file and 1.2 hours drafting the Complaint and related documents. Defendant argues that the Complaint was substantially based on a template and requests that the one-hour file review be disallowed and the drafting time reduced to 0.5 hour.

Although the Complaint likely utilized an existing template, 2.2 hours to review the file and prepare the pleading is not unreasonable. The use of templates may reduce the amount of time reasonably required, but it does not eliminate the need to review the client’s records and tailor the pleading to the particular case.

Defendant also highlights other billing entries it contends are excessive. However, Defendant does not explain in its opposition why those particular entries are unreasonable or identify the reductions sought. Merely highlighting the entries, without further analysis, does not provide a sufficient basis for a reduction.

The Court therefore declines to reduce the challenged time.

Duplicative and Administrative Work

Defendant also generally challenges repetitive review of case materials by multiple attorneys and attorney time spent on administrative tasks, relying primarily on highlighted entries in Exhibit A to the Martin Declaration. Defendant also requests that work performed by higher-billing attorneys be reduced to lower attorney or paralegal rates.

However, Defendant does not sufficiently identify in its memorandum the particular entries, the amount of time that should be disallowed, or a resulting numerical reduction. A general assertion that work was duplicative or could have been delegated does not provide a sufficient basis for a blanket reduction of all attorney time to \$450 per hour or all administrative work to \$250 per hour.

The Court therefore declines to impose the requested blanket reductions.

Fee Motion Work

Defendant challenges 5.5 hours included in the lodestar for reviewing the opposition, preparing the reply, and appearing at the hearing, arguing that the time was prospective and speculative.

In reply, Plaintiff represents that the estimate is close to the time actually incurred and notes that the nearly ten-page reply was prepared in response to Defendant's opposition. (Reply, p. 6; Urner Decl., ¶ 6.)

Although time reasonably incurred in connection with a fee motion is recoverable, the Court finds 5.5 hours somewhat excessive given the relatively straightforward nature of the fee dispute and counsel's familiarity with the applicable law. The Court finds 3 hours reasonable for reviewing the opposition, preparing the reply, and preparing for and appearing at the hearing.

Accordingly, the Court reduces the requested fee-motion time by 2.5 hours. At Urner's \$525 hourly rate, this results in a \$1,312.50 reduction.

Multiplier

Plaintiff additionally seeks a 0.3 enhancement, or \$5,653.95, based principally on the contingent nature of the representation, risk and delay in payment, counsel's expertise, and the result obtained.

In determining whether to apply a multiplier, the court considers a variety of factors that the court did not consider when determining the lodestar figure, such as the novelty and difficulty of the issues presented, the skill displayed in presenting them, the extent to which the nature of the litigation precluded other employment by the attorneys, and the contingent nature of the fee award. (See *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132-1134.) The court is not required to impose a multiplier; the decision is discretionary. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1241.) The

		contingent nature of fee award is relevant where it is “uncertain that the attorneys would be entitled to an award of fees even if they prevailed.” (<i>Weeks v Baker & McKenzie</i> (1998) 63 Cal.App.4th 1128, 1175.) On the other hand, the contingent nature is not generally sufficient where contingency is limited to whether or not the party will prevail. (<i>Id.</i>, at pp. 1174-1175.) A multiplier is more typically seen in cases where counsel undertakes a difficult case in the public interest, not a personal injury case brought by a single plaintiff to recover her own economic damages. (<i>Id.</i>, at p. 1174.) Here, the relevant factors do not support a multiplier. Plaintiff has not shown that the issues were novel or difficult, that the litigation required exceptional skill, or that the contingent risk exceeded the ordinary risk of nonrecovery. The case resolved before trial and did not involve complex proceedings or broader public-interest concerns. The Court therefore declines to apply a multiplier. <u>Total Award</u> The Court reduces the requested lodestar by \$1,312.50 (reflecting a 2.5-hour reduction in the requested fee-motion time at Urner’s \$525 hourly rate). The Court finds the resulting lodestar of \$17,534.00 reasonable and declines to apply the requested 0.3 enhancement. Costs will be determined through the memorandum-of-costs procedure. (See Code Civ. Proc., § 1032; Cal. Rules of Court, rule 3.1700(a)(1).) Accordingly, Plaintiff is awarded \$17,534.00 in attorney fees. Moving party to give notice
7.	2025-1501406 You vs. Mercedes-Benz USA LLC	<i>No tentative</i>
8.	2024-1396920 Centennial Bolt, Inc. vs. Cordova Bolt, Inc.	The Court grants Plaintiffs and Cross-Defendants Centennial Bolt, Inc. (“Centennial”) and Mark Cordova’s (“Mark”) Motion for attorney’s fees pursuant to Code of Civil Procedure section 425.16 for prevailing on their Special Motion to Strike (“Anti-SLAPP”). The Court awards Centennial and Mark the amount of \$62,886 in fees against Plaintiff and Cross-Defendant Cordova Bolt. <u>Legal Standard</u> A “prevailing defendant” (or cross-defendant) on an anti-SLAPP motion “shall be entitled to recover his or her attorney fees and costs.” (Code Civ. Proc., § 425.16, subd. (c)(1); <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1133.)